

Tiede et al. v. Mifflin et al.

[1965] 2 O.R. 489-496

ONTARIO
[ESSEX COUNTY COURT]
CLUNIS, Co.Ct.J.
11th MARCH 1965.

Motor vehicles -- Negligence -- Plaintiff negotiating left turn relying on turn signal displayed by approaching car -- Driver of latter not turning and driving into plaintiff -- Liability -- Highway Traffic Act, R.S.O. 1960, c. 172.

Plaintiff, entering an intersection from the south and intending to make a left-hand turn, signalled such intention and angled across the center line of the street into the northbound lane preparatory to making his turn, relying on the signal of a northbound driver, the defendant herein, that the latter was also going to make a left turn. Instead of turning however, and contrary to his signal, the defendant continued on a straight line through the intersection and collided with the plaintiff. In an action for damages, held, that defendant was liable. When a signal is given by the operator of a motor vehicle, others using the highway are entitled to rely upon it and to govern the operation of their own vehicles having regard to the course of conduct which the signal forecasts and if a driver displays or executes a turn signal and then elects to follow a course other than the one which his signal indicated he does so at his peril. Moreover, even though a driver may be unaware that his turn signal is flashing, it means only that he is driving without due care and attention.

[Weinstein v. Schipper, [1961] O.W.N. 300, aprvd]

ACTION for damages arising out of a motor vehicle collision.

Thomas G. Zuber, for plaintiffs.

John Holland, Q.C., for defendants.

CLUNIS, CO.CT.J.:-- This is an action for damages arising out of a motor vehicle accident. There is also a counterclaim. The plaintiffs are husband and wife. The male plaintiff was the owner and driver of a 1959 Pontiac car. The female plaintiff was a passenger and she was riding in the front seat with her husband at the time of the collision.

The defendant Mifflin was the driver of a 1963 Pontiac car owned by the defendant Bryant Motors Ltd. The defendant Mifflin was alone in what I shall refer to as the defendant's car.

Counsel have assisted me by agreeing to a number of relevant facts. The accident occurred at about six o'clock in the evening on September 28, 1963. It was daylight. The weather was clear, visibility was good and the surface of the highways was dry. The vehicles came together in the intersection of Tecumseh Rd. with Drouillard Rd. and Chrysler Centre. Drouillard Rd. is laid out on a north-south course and it terminates at Tecumseh Rd. Chrysler Centre also is a north-south street and it also terminates at Tecumseh Rd.

If the centre line of Drouillard Rd. were extended southerly and the centre line of Chrysler Centre were extended northerly, the extended centre lines would meet at the centre line of Tecumseh Rd. The intersection is, therefore, a normal four-way intersection confused only by the fact that the names of the north-south highways change at Tecumseh Rd.

Traffic is controlled at the intersection by a traffic light.

Tecumseh Rd. is an east-west highway and has a paved surface

providing three eastbound and three westbound traffic lanes. Drouillard Rd. is also paved and it provides a parking lane on the west side and two lanes for traffic. Chrysler Centre has a paved travelled portion and is slightly wider than Drouillard Rd.

The evidence is not in dispute that prior to the collision the plaintiff's vehicle was going southerly on Drouillard Rd. and the defendant's vehicle was travelling northerly on Chrysler Centre. Both drivers were well acquainted with the intersection.

I make the following findings as to the facts. The female plaintiff had worked on the day of the accident. By arrangement with her husband, she travelled by bus from downtown Windsor to the corner of Drouillard and Tecumseh Rds., where he was waiting in his car to drive her home. She left the bus and entered the car, which was standing in the parking lane of Drouillard Rd. just a short distance south of the northerly side of Tecumseh Rd. The male plaintiff set his car in motion and moved from the parking lane to the southbound lane of Drouillard Rd. and along this line to the pedestrian crosswalk at the northerly side of Tecumseh Rd. The traffic signal was red for southbound traffic and the plaintiff stopped for the light. While he was stopped the plaintiff activated the mechanical turn signal to indicate his intention to turn left on Tecumseh Rd. At about the time the traffic signal changed from red to green for southbound traffic on Drouillard Rd. the plaintiff observed the defendant's car and that the defendant's "flasher" or mechanical turn signal was in operation signalling for a left turn.

When the plaintiff observed the defendant's car it was to the east of and "hugging" the centre line of Chrysler Centre. When the plaintiff first saw the defendant's car it was about 150 ft. south of Tecumseh Rd. and was travelling at between 20 and 30 m.p.h.

The defendant's car continued on a direct course along Chrysler Centre, into the intersection and up to the point of collision. There was no appreciable change in his speed. The

left turn signal indicator continued to flash up to the point of impact and after impact. The defendant first observed the plaintiff's car when the defendant's car was 50 to 100 ft. south of Tecumseh Rd. The plaintiff's car at that time was "at the intersection". The defendant has no recollection of having seen the plaintiff's turn signal at any time.

The plaintiff, after observing the defendant's turn signal, commenced to go forward into the intersection "at a crawl" which I find indicated a speed of not more than 5 m.p.h. The plaintiff's car, after entering the intersection, proceeded wholly in the southbound lane but in a direction which deviated easterly from parallel to the centre line of Drouillard Rd. or the southerly extension thereof. The plaintiff's route, after entering the intersection, was such that when the front of his car reached a point opposite the middle lane of the three westbound lanes on Tecumseh Rd. it commenced to enter the northbound lane of Drouillard Rd. and Chrysler Centre. After the front end of the plaintiff's car had crossed the extension of the centre line of Drouillard Rd. and Chrysler Centre into the northbound traffic lane he perceived that Mifflin was not altering course and that a collision was imminent. The plaintiff then sounded his horn and swung sharply to the left. When the collision occurred the right rear portion of the front door of the plaintiff's car was about 6 ft. east of the centre line dividing the north-and southbound lanes of Drouillard Rd. and Tecumseh Rd. and in the middle lane of the three westbound lanes on Tecumseh Rd. The plaintiff's vehicle therefore was largely in the northbound lane but the rear portion extended into the southbound lane when the impact occurred. Stated more succinctly, the collision took place in the northeast quadrant of the intersection and the plaintiff's car at that time was almost wholly blocking the northbound lane and extended into the southbound lane of the intersection.

In those matters in which I have made no specific finding, I prefer the evidence of the male plaintiff to the evidence of the defendant Mifflin. The evidence of the female plaintiff as to the accident was confused and inconsistent and I place no reliance upon it. The evidence of Leonard and Porter in my view substantiates the male plaintiff's evidence in material

particulars.

The plaintiff contends that he lawfully entered the northbound traffic lane. He says that he was entitled to enter because the Mifflin car was signalling a left turn in a manner prescribed by the Highway Traffic Act, R.S.O. 1960, c. 172. The argument continues that the plaintiff is relieved from the obligation cast upon those who intend to turn left at an intersection because he was entitled to rely on the signal. He cites the decision of His Honour Judge Charlton in *Weinstein v. Schipper*, [1961] O.W.N. 300, in support of his contention.

The defendant does not concede that his turn signal was operating. He says that the plaintiff crossed into the northbound lane and into the path of the Mifflin vehicle when the vehicles were so close to each other that the defendant was unable to avoid the collision. He emphasizes that the course of the plaintiff's vehicle was not the one prescribed by the Highway Traffic Act, s. 68(3). He contends, first, that the plaintiff failed to act in accordance with his obligation to refrain from entering the northbound lane until he could do so without danger of collision with the defendant. Secondly, he contends that the plaintiff was negligent in pursuing the course which his vehicle followed as it entered the intersection. This second contention raises the inference that if the plaintiff had proceeded to the centre line of Tecumseh Rd. before crossing the northbound lane no collision would have occurred. If the plaintiff had so proceeded he would have realized that the defendant was not going to alter his course from northward to westward at Tecumseh Rd.

The defendant argues that even if the left turn signal was in operation on the defendant's vehicle the collision would not have occurred if the plaintiff had proceeded in accordance with s-s. (3) and waited until the defendant either made the left turn or, failing to do so, had proceeded safely by on the northbound course.

The defendant argues that even if the defendant was negligent that the plaintiff by his conduct in turning into the northbound lane in the face of the oncoming vehicle and by

making the turn in the northeast quadrant of the intersection acted negligently and the responsibility for the accident should be divided between the parties.

In view of my finding that the defendant's turn signal was operating to indicate a left turn, the scope of the defendant's contention is narrowed. Since the defendant was not aware that his turn signal was in operation, I conclude that he was operating his vehicle without due care and attention. I find that the defendant's failure to see the flashing of the plaintiff's turn signal shows that the defendant was not keeping a proper look-out.

I have considered the provisions of s-s. (2) of s. 68 of the Highway Traffic Act and I have reviewed *Muffet v. Fleming*, [1938] 3 D.L.R. 84, [1938] O.R. 358; *Payne v. Lane*, [1949] O.W.N. 284; *Jones v. Jeaneret*, [1934] O.W.N. 262; *Joseph Eva, Ltd. v. Reeves*, [1938] 2 K.B. 393, and *Meyers v. Virchomin*, [1948] 1 D.L.R. 1 and, of course, *Weinstein v. Schipper*, [1961] O.W.N. 300.

I have come to the conclusion that s-s. (2) is not applicable to the facts of this action and that the plaintiff's vehicle in this action was not the servient vehicle as the term is used in *Muffet v. Fleming* by Middleton, J.A. Subsection (2) reads as follows:

(2) The driver or operator of a vehicle within an intersection intending to turn to the left across the path of any vehicle approaching from the opposite direction shall not make such left turn until he has afforded a reasonable opportunity to the driver or operator of such other vehicle to avoid a collision.

In my view of the circumstances here the plaintiff cannot be said to have been "intending to turn to the left across the path of the defendant's vehicle". This plaintiff relied on the signal of the defendant and when the plaintiff crossed the centre line dividing the northbound and southbound traffic lanes he did so on the reasoned expectation that he was not going to cross the defendant's path. The plaintiff expected

and had a right to expect that the defendant was going to alter his northbound course and proceed westerly on Tecumseh Rd. in accordance with the signal being given.

I find myself in agreement with the reasoning of His Honour Judge Charlton in the Weinstein case.

Vehicles upon a highway are required by the Highway Traffic Act to carry defined equipment which is intended to reduce accidents and speed the flow of traffic. Headlights and tail-lights, for example, have long been required by the Highway Traffic Act. The Legislature in prescribing the colour of the light required to show from the front and from the rear desired that it should be apparent to others using the highway between sunset and sunrise in what direction moving vehicles were proceeding. These lights, which have long been required, are taken for granted. The operators of vehicles automatically make decisions by the colour of the lights showing on other vehicles. But in point of fact, these lights are signal lights indicating the direction in which a vehicle is facing, if at rest, or proceeding, if in motion.

If one imagines a vehicle on which the positions of the lights have been reversed so as to show red to the front and white to the rear, one can visualize the confusion which such a vehicle would cause. The liability of the owner and driver of such a vehicle to those who see the lights and govern the operation of their own vehicles in reliance upon them would seem abundantly clear.

The requirements of the Highway Traffic Act that the operator of a motor vehicle shall signal his intention to make a turn are also intended to make highways safer. When a signal is given by the operator of a vehicle others using the highway are entitled to rely upon it and to govern the operation of their vehicles having regard to the course of conduct which the signal forecasts. I take the view that if the driver of a car displays or executes a turn signal and then elects to follow a course other than the one which his signal indicated he does so at his peril. Others upon the highway, who observed the signal, and pursued a course which gives effect to it, cannot be

considered liable for resulting collisions.

If this were not so, the making of the statutory signals either manually or mechanically would be no more than an announcement that there was doubt as to the direction in which the signalling vehicle might shortly be expected to proceed.

The facts of this present case are that the male plaintiff observed the signal of the defendant vehicle before entering the intersection. There was nothing about the operation of the defendant's vehicle that was inconsistent with the expressed signal. The defendant was travelling at a slow rate of speed and the defendant's vehicle was near the centre line of the street on which he was travelling. These three facts: the speed of the vehicle, the turn signal flashing and the speed of the defendant's car; justify the plaintiff's conclusion that he was not crossing the northbound lane into the path of the defendant's northbound vehicle.

In my view, therefore, the plaintiff has proven that the negligence of the defendant caused or contributed to the collision. There remains to consider the conduct of the plaintiff and to determine if he was guilty of negligence which caused or contributed to the collision.

The defendant clearly violated s-s. (3) of s. 68 of the Highway Traffic Act. I have come to the conclusion that this did not cause or contribute to the collision. If the defendant had executed the left turn for which he signalled, the position of the plaintiff's car was such that a collision was less likely than would have been the case if he had proceeded to a point near the intersection of the centre lines of the two highways before crossing into the northbound lane.

The plaintiff was travelling at a reasonable rate of speed; he had signalled his intention to turn; he had observed the defendant's vehicle, its position and speed and, having done so, he committed his car on a course which, if there had been no signal of a left turn by the defendant, would have rendered the plaintiff largely, if not wholly, responsible for the accident. The obligation which would have rested upon the

plaintiff to pause in the southbound traffic lane until the defendant had passed was removed by the continuous flashing of the defendant's turn signal, from the time it was first seen by the plaintiff until the collision occurred.

In the matter of damages, counsel have agreed that the out-of-pocket expenses of the male plaintiff were \$472.52. There is no evidence of general damage for which the male plaintiff is entitled to compensation.

Counsel have also agreed that the female plaintiff's special damages, apart from wages lost, are as follows:

Hospital	\$305.90	Dr. George	200.00	Red
Cross	17.50	Hospital	25.00	Ambulance
12.50				

The female plaintiff also suffered loss of wages and is entitled to general damages for injuries which she sustained. The difficulty in assessing these general damages arises from the fact that shortly after the accident the female plaintiff began to show marked and severe symptoms which were diagnosed as being associated with the commencement of the menopause. From that time forward the medical evidence is that it is impossible to distinguish what symptoms are to be regarded as resulting from the accident and which are to be regarded as menopause syndrome. I cannot be asked to guess concerning these matters. There can be no question that the female plaintiff sustained multiple bruises, shock and soft tissue injury to her neck, shoulder, chest and right buttock. She suffered from headache and dizziness for some time. She did not sustain any fractures but has two slight scars on her left arm and hand. She was hospitalized from September 28th to October 12th and on October 24th she was readmitted to hospital because of a duodenal spasm which had caused her to cough blood. One cannot be sure that this condition from which she has now recovered is directly related to the accident.

This plaintiff's doctor recommended, despite her intervening symptoms of menopause, that she attempt to return to her work on January 6th. She was obliged to give up the attempt and has

not yet returned to work. I think it reasonable to conclude that those residual effects attributable solely to the accident had improved to the extent that had the menopause not intervened that she should have been able to commence and continue working after January 6, 1964.

This plaintiff does suffer from headaches which commenced after the accident and have decreased in both occurrence and severity. She indicated that they now occur two or three or four times per week.

I have come to the conclusion that the female plaintiff is entitled to wages for a period of 12 weeks following the accident. The total allowance for lost wages will, therefore, be \$459.

I allow the female plaintiff for general damages the sum of \$900.

I fix the defendant's special damage at \$322.59 and I find that the defendant has not proved any general damage.

There will, therefore, be judgment for the male plaintiff in the sum of \$472.52

There will be judgment for the female plaintiff in the sum of \$1,919.90

The plaintiffs are entitled to their costs.

Judgment for plaintiffs.

MVRT